

Terms and Conditions governing the Features and Offers of the Emirates Skywards ICICI Bank Rubyx Credit Card

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These terms and conditions (the '**Terms**') apply to and regulate the '**Emirates Skywards ICICI Bank Rubyx Credit Card**' (the '**Credit Card**') issued by ICICI Bank Limited (ICICI Bank') in collaboration with co-brand partner Emirates, a Dubai corporation established by Decree No. 2 of 1985 (as amended) (**Emirates**)

These Terms are in addition to and not in derogation of the terms and conditions governing the Credit Card facilities of ICICI Bank (the '**Primary Terms and Conditions**'), as available at www.icicibank.com. To the extent of any inconsistency between these Terms and the Primary Terms and Conditions, these Terms shall prevail to the extent of such inconsistency. Terms used in capitalized form, however not defined herein under, shall have the meaning assigned to them under the Primary Terms and Conditions.

I. DEFINITIONS

In the Terms, unless there is anything repugnant to the subject or context thereof, the following words / expressions shall have the meaning as stated herein under:

- a. '**Anniversary Year**' means the period of twelve months from the date of issue of a Credit Card and each twelve-month period thereafter.
- b. '**Annual Fee**' means the fee that is automatically charged to your Credit Card account to allow you to keep the Credit Card account open.
- c. '**Applicant(s)**' shall mean a person who, with intent to avail, applies for the mentioned Credit Card.
- d. '**Cardholder(s)**' shall mean a person who holds a valid and subsisting Credit Card.
- e. '**Credit Card**' shall mean the Emirates Skywards ICICI Bank Rubyx Credit Card.
- f. '**Emirates Skywards Loyalty Programme**' means a loyalty programme operated by Emirates on its own and on behalf of 'flydubai' as one loyalty programme for Emirates and airlines. Emirates Skywards (defined hereinafter) is a trademark or registered trademark of Emirates.

- g. **'Emirates Skywards Membership Account'** means the account in which the Skywards Miles of a Member will be accrued / deducted.
- h. **'flydubai'** means Dubai Aviation Corporation (trading as 'flydubai'), a corporation established by Law No. (11) of 2008.
- i. **'Joining Fee'** means the fee that is applicable and charged to the Cardholder(s) at the time of issuance of the Credit Card
- j. **'Member'** means a person who has applied for membership of the Emirates Skywards loyalty programme and has been issued a membership number in this respect.
- k. **'Membership Tier'** means a membership level in the Emirates Skywards loyalty programme.
- l. **'Milestone'** is the pre-set condition which may be in terms of spends on the Credit Card, on the achievement of which, some pre-defined benefit may be provided to the Cardholder(s).
- m. **'Partner'** means a provider of goods or services which is participating in Emirates Skywards from time to time may include airlines (with the exception of flydubai), hotels & resorts, financial, leisure and lifestyle service providers and car hire companies.
- n. **'Primary Cardholder(s)'** is the person in whose name the Credit Card account has been opened and to whom Credit Card has been issued.
- o. **'Programme Rules'** refer to the rules governing the Emirates Skywards Loyalty Programme.
- p. **'Qualifying Flight(s)'** means a flight(s) on Emirates or flydubai or flight(s) marketed or identified by Emirates or flydubai as such, but operated by another airline, between the point of origin and point of destination of the outward and / or return journey.
- q. **'Reward'** means specified goods or services to be provided by Emirates Skywards or a Partner to a Member in exchange for Skywards Miles.
- r. **'Skywards Miles'** means those miles earned every time a member takes a flight or purchases qualifying goods and services from any Partner and which can be redeemed for Rewards under the Emirates Skywards Programme Rules.
- s. **'Statement'** means monthly statement/s of account sent by ICICI Bank to a Cardholder(s) setting out the financial liabilities on that date, of such Cardholder(s) to ICICI Bank in respect to their Credit Card account.
- t. **'Supplementary Cardholder(s)' or 'Add-on Cardholder(s)'** means the family member of the Primary Cardholder(s) who becomes a Cardholder(s).

II. INTERPRETATION

1. Any term referenced but not defined herein would be interpreted in accordance with the agreement pertaining to Card(s) entered between Primary Cardholder(s) and ICICI Bank (the 'Credit Card Agreement').
2. These terms and conditions governing the Credit Card supplement, but do not in any way amend or contradict the terms and conditions of the Credit Card Agreement.

III. GENERAL TERMS

1. Withholders hereby authorize ICICI Bank to share the following data or information associated with their Emirates Skywards ICICI Bank Credit Card application (i) name; (i) registered e-mail ID; (ii) registered mobile number; (iii) Credit Card variant availed (Rubyx / Sapphire / Emerald); and (iv) Credit Card account number, with Emirates to provide them services, rewards and benefits with respect to the Emirates Skyward ICICI Bank Credit Card and they shall not hold ICICI Bank responsible or liable for sharing such information.
2. Cardholders understand and agree that in case the EK Account (Emirates Skywards Loyalty Programme Account / Membership) number provided by them is not a part of / active in the Emirates Skywards Loyalty Programme, Emirates will create a new Emirates Skywards account on their behalf with their e-mail ID and / or mobile number provided in the Card Application. Emirates shall update them with details of the new Emirates Skywards account and steps to access the Emirates Skywards account by way of an SMS and / or e-mail.

Cardholders agree and acknowledge that if they are not an existing Member, they will be automatically enrolled by Emirates into the Emirates Skywards Loyalty Programme. Also, if they do not mention their existing Emirates Skywards Rewards Programme membership number in the application form, a new Emirates Skywards Rewards Programme membership number will be allotted to them and linked to the Credit Card. Please note that by applying for the Credit Card, the terms and conditions of membership of the Emirates Skywards Programme and the privacy policy of Emirates should also become applicable. These can be found at: <https://www.emirates.com/in/english/skywards/emiratesskywardsprogramme-rules/>

3. Cardholder(s) agree and understand that ICICI Bank is the issuer of the Credit Cards and at its discretion can (i) issue the Credit Card; and (ii) add or debit Skywards Miles in case of any error entries. For detailed terms and conditions, refer to www.icici.bank.com

IV. BENEFITS AND FEATURES

Subject to the Terms specified herein, the Cardholder(s) can avail of the following benefits:

1. **Joining Benefits of the Credit Card**

- a. The Primary Cardholder(s) will receive complimentary Emirates Blue Tier membership, subject to the payment of Joining Fee.

2. **Complimentary Emirates Skywards Tier Membership**

- a. The Emirates Skywards Blue Tier membership is available for the Primary Cardholder(s) of the Credit Card upon payment of Annual Fee.
- b. Cardholder(s) who are existing Emirates Skywards Gold or Emirates Skywards Silver members will retain their current status respectively.
- c. For detailed rules on Skywards Miles tier membership and benefits, refer to [Emirates Skywards Programme Rules](#).

3. **Skywards Miles earned on Card spends**

Spends category	Skywards Miles (per ₹ 100 spent)
Eligible Retail Spends	1
Fuel, Cash Advances, ATM Withdrawals, Expenditure in the form of EMI's, Balance Transfer, Personal Loan on Credit Card, Fees and other charges a Insurance payments, Utility payments, Government spends, Education payments, rent payments, e-wallet loading transactions.	0

- a. Skywards Miles will be credited to the Primary Cardholder's Emirates Skywards Membership Account within 48 hours of the statement generation date by the Bank.

- b. Cardholder(s) will not earn Skywards Miles on transactions that have been subsequently reversed.
- c. If there are any Supplementary Cardholder(s) linked to the Card account, any Skywards Miles they earn by spending on their Cards will also be credited to the Primary Cardholder's Emirates Skywards membership account.
- d. Skywards Miles can be earned up to the credit limit assigned to the Credit Card for each statement cycle.
- e. The number of Skywards Miles earned from Credit Card spends will be displayed on the Primary Cardholder's monthly Credit Card statement.
- f. Where a refund is made on the Credit Card, the Skywards Miles total will be adjusted accordingly by ICICI Bank from subsequent Skywards Miles earnings.
- g. Current Emirates Skywards members have the responsibility to enter their existing Emirates Skywards membership number when applying for the Credit Card.
- h. The Emirates Skywards membership number entered must be for an Emirates Skywards membership account in the Cardholder's name.
- i. If the Cardholder is not an existing Emirates Skywards member, the personal information such as, but not limited to, applicant name, registered e-mail ID, registered mobile number, Card variant availed and Credit Card account number will be shared by the ICICI Bank with Emirates to enroll the Cardholder(s) in Emirates Skywards.

4. Emirates Skywards Rewards Programme

- a. A Member may earn Skywards Miles for flights or earn Skywards Miles using the qualifying services of Partners on or after his or her enrolment date. Partner transactions prior to enrolment date are not eligible for Skywards Miles.
- b. Skywards Miles are valid for a period of three years from the date on which a Member undertakes the relevant flight or enters into the applicable transaction with a Partner.
- c. Skywards Miles may be redeemed for Rewards only by that Primary Cardholder(s) or his or her travel co-ordinator (or by a parent or guardian on behalf of a Member under 18 years of age). To claim a Reward, a Primary Cardholder must have accumulated the required amount of Skywards Miles in his or her account. Primary Cardholder(s) may redeem Skywards Miles for Rewards at any time while the Skywards Miles are valid, subject to availability and applicable conditions as set out in the Programme Rules, the link to the same is provided below or in terms and conditions imposed by

Partners. Emirates Skywards may, at any time without notice, alter the number of Skywards Miles required to obtain a particular Reward, withdraw a Reward supplied or impose additional restrictions on a Reward or conditions for obtaining it.

- d. For further details on the programme, kindly visit the below links:
- About Emirates Skywards: www.emirates.com/ae/english/skywards/ • Emirates Skywards Programme Rules: www.emirates.com/ae/english/skywards/emirates-skywardsprogrammerules/
 - Membership benefits: www.emirates.com/ae/english/skywards/about/membershiptiers/membership-benefits.aspx

V. NOTIFICATION OF CHANGES

1. ICICI Bank shall have the absolute discretion to amend or supplement the Terms, the features and benefits offered on the Credit Card including, without limitation, changes which affect interest rates or methods of calculation, at any time.
2. ICICI Bank shall notify / communicate the amended Terms by hosting the same on ICICI Bank's website or in any other manner as decided by ICICI Bank. The Cardholder(s) shall be responsible for regularly viewing these Terms, including amendments thereto as may be posted on ICICI Bank's website and shall be deemed to have accepted the amended Terms by continuing to use the Credit Card.
3. ICICI Bank reserves the right to cancel, suspend, change or substitute the benefits, offers or eligibility parameters for such benefits or offers, computation methods for calculating the benefits or the terms and conditions applicable thereto at any time, with notice to the Cardholder(s), without assigning any reason(s) to the Cardholder(s).

VI. TERMS AND CONDITIONS GOVERNING THE CREDIT CARDS

1. This co-brand agreement includes revenue sharing between two parties as a part of terms agreed by Emirates Skywards and ICICI Bank.

2. The Credit Card and the Cardholder's obligations under these Terms shall not be assigned. ICICI Bank may transfer its rights under these Terms.
3. Use of the Credit Card is subject to all applicable rules and customs of any clearing house or other association involved in transactions.
4. ICICI Bank does not waive its rights by delaying or failing to exercise them at any time.
5. If any provision of the Terms is determined to be invalid or unenforceable under any rule, law or regulation of any governmental agency, local, state or federal, the validity or enforceability of the other provisions of the Terms shall not be affected.
6. Images used in all the communications pertaining to the offers / benefits / promotions are for representation purpose only.
7. If the Cardholder(s) cease(s) to be Cardholder(s) at any time during the subsistence of the offers / benefits, all the benefits under the Offer shall lapse and shall not be available to the Cardholder(s).
8. All communication / notices with regard to the offers / benefits should be addressed to: ICICI Bank Ltd., ICICI Bank Phone Banking Group, P. O. Box No. 20, Banjara Hills, P. O. Hyderabad - 500034
9. In all matters relating to the offers / benefits, the decision of ICICI Bank shall be final and binding in all respects.

ICICI Bank reserves the right to modify / change all or any of the terms applicable to the Credit Card without assigning any reasons or without any prior intimation whatsoever. ICICI Bank also reserves the right to discontinue the Credit Card without assigning any reasons or without any prior intimation whatsoever.

10. All taxes, duties, levies or other statutory dues and charges payable in connection with the benefits accruing under the offers shall be borne solely by the Cardholder(s) and ICICI Bank will not be liable in any manner whatsoever for any such taxes, duties, levies or other statutory dues.
11. The Cardholder(s) shall be bound by the terms and conditions stipulated by the third parties where services / offers are provided by such third parties.
12. No substitutions or exchange of offer, other than what is detailed in the communication sent to the Cardholder(s), shall be allowed. However, ICICI Bank reserves the right to substitute and / or change any offer, without any intimation or notice, written or otherwise, to the Cardholder(s).
13. ICICI Bank shall not be liable in any manner whatsoever for any loss / damage / claim that may arise out of use or otherwise of any goods / services / offers availed by the Cardholder(s) under the alliance offered by the third parties.

14. ICICI Bank reserves the right to disqualify the third-party alliance partners or Cardholder(s) from the benefits of the alliance if any fraudulent activity is identified as being carried out for the purpose of availing the benefits under the alliance.
15. ICICI Bank shall not be held liable for any delay or loss that may be caused in the delivery of the goods and services offered by third parties.
16. The offers / benefits are not available wherever prohibited and / or on products / services for which such alliances cannot be offered for any reason whatsoever.
18. ICICI Bank would be deemed to have acted in good faith in response to any oral or electronic instruction or inquiry by the Cardholder(s) in respect of any matter in relation to this product and the provision of any offer or benefit hereunder.
19. The Cardholder(s) shall not be entitled to claim or allege any loss, damage, liability, expense attributable, directly or indirectly, to any such good faith action of ICICI Bank and the Cardholder(s) shall indemnify and hold ICICI Bank harmless in respect thereof.
20. On the termination of this Credit Card programme, ICICI Bank may decide to either continue the Credit Cards with an alternate programme or replace such Credit Cards with any other Credit Card(s) as issued by ICICI Bank from time to time.
21. ICICI Bank may at its sole discretion decide to outsource, to the extent permitted by the applicable laws, obligations in relation to the Credit Card programme creation, to third-party entities.
22. Notwithstanding anything contained in this document, ICICI Bank shall not be held liable for any default or delay in performance of any obligation pertaining to the features and benefits of the Credit Card offers, due to unavoidable situations, beyond the reasonable control of ICICI Bank and not attributable to ICICI Bank including but not limited to fire, flood, casualty, epidemic or outbreak of any disease, lockout, strike, labour disputes, industrial action of any kind, unavoidable accident, national calamity, riot, pandemic, Act of God, any enactment by a lawmaking authority or the act of any other legally constituted authority, changes in the applicable law, or default of third party or any cause or event arising out of or attributable to war, other than shortage or lack of money.